

CMC statements in advance.

7. 9:00 AM CASE NUMBER: C25-01946

CASE NAME: SEAN PRATHER VS. ELVIA DEPALAC

WITH MENTOR

FILED BY:

TENTATIVE RULING:

Parties to coordinate with settlement mentor.

8. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

FILED BY:

TENTATIVE RULING:

Parties to appear.

9. 9:00 AM CASE NUMBER: C25-02850

CASE NAME: TITO TORRES VS. MARK SCOTT CONSTRUCTION, INC.

FILED BY:

TENTATIVE RULING:

If neither party challenges the tentative ruling, further CMC/Arbitration Status set for February 10, 2027.

Law & Motion

10. 9:00 AM CASE NUMBER: C22-02101

CASE NAME: JOSHUA BAUGHMAN VS. RAMESH PITAMBER

TERMINATING SANCTIONS

FILED BY: PITAMBER, RAMESH

TENTATIVE RULING:

Defendants Ramesh Pitamber and Opal Investment, LLC have filed a Motion for Terminating Sanction. The Motion is premised on pro se Plaintiff Joshua Baughman's refusal to participate in the discovery process. Baughman has refused to appear for a deposition that was ordered by the Court on more than one occasion. He has refused to pay monetary sanctions arising out of his refusal to appear for the deposition. The Motion is unopposed and Baughman has made no filings on this docket since his attorney withdrew over a year ago. Given this course of conduct, pursuant to Code of Civil Procedure section 2023.030(d), the Court **grants** the Motion. The matter is dismissed.

11. 9:00 AM CASE NUMBER: C23-01436
CASE NAME: PUZZLE CONSTRUCTION, INC. VS. ALEX VUONG
MANDATORY RELIEF FROM DISMISSAL
FILED BY: PUZZLE CONSTRUCTION, INC.
TENTATIVE RULING:

Before the Court is Plaintiff's Motion for Mandatory Relief from Dismissal Pursuant to CCP § 473.

Procedural Background

Plaintiff filed the Complaint on June 9, 2023. Defendants filed a Cross-Complaint on September 29, 2023.

The initial case management conference was held on October 9, 2023. Plaintiff and/or its counsel failed to appear so an order to show cause was issued. A second CMC was held on January 16, 2024, the same date of the OSC related to Plaintiff's counsel's failure to appear. Again, there was no appearance by Plaintiff and/or counsel. Accordingly, the Court ordered sanctions in the amount of \$100 and issued another OSC for failure to appear at the January 16 hearing. That hearing was set for July 15, 2024.

Again, there was no appearance by Plaintiff and/or counsel at the July 15, 2024, OSC and CMC. As such, the Court ordered that the Complaint be dismissed. It also issued an OSC as to why the answer to the cross-complaint should not be stricken for the repeated failures to appear. That hearing was scheduled for October 21, 2024. Again, Plaintiff and/or counsel for Plaintiff failed to appear.

In the interim, Plaintiff filed a motion for mandatory relief from dismissal on September 10, 2024. Plaintiff's counsel Huechi Wong filed a declaration in support indicating that the earlier dismissal was due to his failure to appear, that he was "solely responsible for handling" the matters, and that his "conduct was inexcusable." The Court granted the motion to set aside the dismissal on January 16, 2025.

Thereafter, Plaintiff's counsel again failed to appear at the March 24, 2025, CMC and OSC hearing. Accordingly, the Court issued sanctions in the amount of \$200 for each hearing date Plaintiff's counsel failed to appear at and issued another OCS for failing to appear that day. That hearing was scheduled for June 24, 2025. Plaintiff's counsel ***again*** failed to appear. Counsel was again sanctioned \$200 and the Court issued another OSC as to why the Complaint should not be dismissed. That hearing was set for September 5, 2025.

True to form, Plaintiff's counsel again failed to appear at the OSC hearing/CMC on September 5, 2025. Due to Plaintiff's counsel's repeated failures to appear and failure to even respond to the OSCs, the Court dismissed Plaintiff's complaint – for the second time.

On September 22, 2025, Defendants filed and served a Notice of Entry of Order confirming the dismissal of Plaintiff's Complaint. Plaintiff filed the instant motion to set aside on March 23, 2026.

Legal Standard

Plaintiff moves to set aside the dismissal of the Complaint pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively,

and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

The ‘mandatory’ provision, which Plaintiff relies upon, relates to times when an attorney admits fault in causing the default. This provision is set forth in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).)

“Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney’s neglect must show that the neglect was *excusable*.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487 (“*Metro*”).) An entirely different standard exists under the mandatory relief provisions in section 473. “These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Ibid.*)

Analysis

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 “[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.”) Accordingly, 473(b) “at most demand[s] an attorney’s candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors.” (*Ibid.*) “In other words, the purpose of the mandatory relief provision under section 473, subdivision (b) is achieved by focusing on *who* is to blame, *not why*.” (*Id.* at 439 italics in original)

The declaration submitted by Plaintiff’s counsel is sufficient as a “candid, full, and straightforward acknowledgment of his or her error.” (*Id.* at 441.) Plaintiff’s counsel declares:

“I failed to attend multiple hearings and pay monetary sanctions, which ultimately resulted in the dismissal of plaintiff’s complaint. But for my mistakes, the dismissal would not have been entered. I was solely responsible for handling said matters. It was not my client’s responsibility. Thus, it was my fault for letting the dismissal occur.”

Under the mandatory provisions of section 473, the court is *required* to grant relief if the attorney admits neglect. (*Metropolitan Service Corp.*, *supra*, 31 Cal.App.4th at 1487.)

Defendants argue that section 473(b) “was never intended to serve as a ‘perfect escape hatch’ for ‘every case of poor judgment on the part of counsel [...] which results in dismissal,’” citing *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 147. That portion of the opinion was discussing the case of *Huens v. Tatum* (1997) 52 Cal.App.4th 259, which was faced with determining whether the mandatory provisions of section 473(b) “apply to a voluntary dismissal entered pursuant to a settlement agreement.” (*English*, 94 Cal.App.4th at 141.)

The *Huens* court rejected “the plaintiff’s contention the mandatory provision of section 473(b) applied to voluntary dismissals, stating: ‘The purpose of the statute was to alleviate the hardship on parties who *lose their day in court* due solely to an inexcusable failure to act on the part of their attorneys. There is no evidence the amendment was intended to be a catch-all remedy for every case of poor judgment on the part of counsel which results in dismissal.’” (*Id.* at 142) Thus, *Huens* and *English*’s citation thereto pertain to a completely different set of facts – not present in this matter.

As noted above, the court is required to “grant relieve if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Metro*, supra, 31 Cal.App.4th 1481, 1487 italics in original.) “The only exception to mandatory relief is when the trial court ‘finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.’” (*Ibid.*) The dismissal here was clearly caused by the attorney’s neglect. As such, relief is mandatory.

Fees and Costs

Curiously, Defendants request an award of fees and costs pursuant to Code of Civil Procedure section 2023.030(a). That section notes that the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” The issue here does not relate to misuse of the discovery process.

Code of Civil Procedure section 473, subdivision (b), however states:

The court ***shall***, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. (emphasis added.)

Defendants’ counsel, Richard Bowles, submits a declaration indicating that his office spent 22.5 hours reviewing the file and preparing the opposition. This included 21 hours spent by a “clerk” drafting the opposition, 1 hour of Mr. Bowles time related to the motion, along with an anticipated 30 minutes to attend the hearing.

The Court finds that these hours are extremely excessive. The Opposition consists of a 4-page memorandum that cites two cases (which are inapplicable), along with the wrong statute under which they are seeking fees and costs. Such an opposition should not have taken more than 3-4 hours for a junior level associate with oversight from a seasoned partner. The rate of \$425/hr. for Mr. Bowles is reasonable. The Court cannot determine if \$250/hr. for the ‘clerk’ is reasonable as there is no explanation as to the ‘clerks’ qualifications and experience. It would be a reasonable rate for a junior level associate, however.

The Court awards \$1,425 in attorney fees (4x\$250 + 1x\$425). The Court also awards \$60 in costs for

the filing fee. Thus, a total of \$1,485 shall be paid to Defendants. This amount is to be paid individually by counsel for Plaintiff – Huechi Wong.

Under section 473, subdivision (c), the Court may also direct “that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund,” among other relief. Given the pattern of neglect shown in this matter, the Court also directs Plaintiff’s counsel to pay the amount of \$1,000 to the State Bar Client Security Fund.

Conclusion

Plaintiff’s motion to set aside the dismissal is **granted**. Plaintiff’s counsel Huechi Wong is ordered to pay Defendants \$1,485. He is also ordered to pay \$1,000 to the State Bar Client Security Fund. These amounts shall be paid within 30 days of notice of entry of the order on this motion.

12. 9:00 AM CASE NUMBER: C25-01854

CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

1ST AMENDED COMPLAINT

FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer. That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

13. 9:00 AM CASE NUMBER: C25-01854

CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

STRIKE PLTFS 1ST AMENDED COMPLAINT

FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer (and, presumably, the Motion to Strike). That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

14. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

STRIKE THE FIRST AMENDED COMPLAINT

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of the first amended complaint. For the reasons set forth, the motion to strike is **granted, without leave to amend**.